

FEDERAL MARITIME COMMISSION, WASHINGTON DC
Office of Administrative Law Judges

Muhammad Rana,
Complainant

V.

Michelle Franklin,
The Right Move Inc.,
Respondent

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Docket No. 19-03

April 9, 2020

BEFORE: Honorable Erin M.WIRTH, *Administrative Law Judge.*

**COMPLAINANT'S RESPONSES TO RESPONDENT'S PROPOSED FINDING OF FACTS AND
REPLY BRIEF**

I. Complainant's Response to Respondent's Proposed Finding of Facts

RESPONDENT'S PROPOSED FINDING OF FACT: 03/12 /2019- I requested a proper inventory list, as it was not received yet. Advised the customer that the shipment is due to arrive on April 3rd, and In order for me to share the BOL with him, I need the proper Inventory list and consignee info.

COMPLAINANT'S RESPONSE: The Complainant had followed the original instructions and at this point the Complainant had already provided the Respondent with the inventory and consignee info. The Respondent was arbitrarily claiming that the itemization was not proper and that the Complainant had to submit another itemized list. The Respondent is not being honest here because evidence in the record shows that the BOL had already been issued by TROY Container lines based on the Complainant's original itemized list back in February 2019. *See Complainant's Exhibit 6.* The Complainant would like to point out that TROY's Bill of Lading had already been issued on February 27, 2019. TROY's Bill of Lading number: 1239458, is dated "2/27/2019" and clearly states "72 PIECES OF USED HOUSEHOLD GOODS AND PERSONAL EFFECT" with a gross weight of "1360.78 KG." *See Complainant's Exhibit 6.* This demonstrates that the Bill Lading had been issued with the original itemized list that the Complainant submitted back in February 2019. This is the original Bill of Lading that was used for the passage and for customs clearance. The Respondent here was arbitrarily withholding the original BOL and asking the Complainant to resubmit the itemized list and telling him about additional costs perhaps in an attempt to get more money. The Complainant complied and

resubmitted the itemized list multiple times in March 2019. The BOL never became an issue and did not cause any delays. The Respondent appears to be bringing this up and making an issue out of this now in order to deflect the attention from the actual issue at hand, which is Respondent's failure to pay Ocean charges. The Complainant had requested in discovery for the Respondent to provide all correspondence with TROY; the Respondent failed to produce these documents and provide answers because she is trying to conceal material facts that would have impacted her interests negatively in this litigation. Those documents would have further established that the delay was caused by Respondent's failure to pay Ocean and that the Bill of Lading did not cause any delays. *See Complainant's Exhibit 8. This fact is also supported by Respondent's failure to respond to Complainant's discovery: Request for the Production of Documents 1 and 2.*

RESPONDENT'S PROPOSED FINDING OF FACT : 03/25/2019 - Mr. Rana still didn't provide proper details for the BOL, so I sent a reminder.

COMPLAINANT'S RESPONSE: Again, the Complainant would like to point out that TROY's Bill of Lading had already been issued on February 27, 2019. TROY's Bill of Lading number: 1239458, is dated "2/27/2019" and clearly states "72 PIECES OF USED HOUSEHOLD GOODS AND PERSONAL EFFECT" with a gross weight of "1360.78 KG." *See Complainant's Exhibit 6.* Clearly this demonstrates that the Bill of Lading had been issued with the original itemized list that the Complainant submitted back in February 2019. This is the original Bill of Lading that was used for the passage and for customs clearance. The Respondent at this time was arbitrarily withholding the BOL and asking the Complainant to resubmit the itemized list in an attempt to extort more money. The Respondent appears to be bringing this and making an issue out of this now in order to deflect the attention from the actual issue at hand, which is Respondent's failure to pay Ocean charges. The Complainant had requested in discovery for the Respondent to provide all correspondence with TROY; the Respondent failed to produce these documents and provide answers because she is trying to conceal material facts that would have impacted her interests negatively in this litigation. Those documents would have further established that the delay was caused by Respondent's failure to pay Ocean and that the Bill of Lading did not cause any delays. *See Complainant's Exhibit 8. This fact is also supported by Respondent's failure to respond to Complainant's discovery: Request for the Production of Documents 1 and 2.*

RESPONDENT'S PROPOSED FINDING OF FACT: 03/27/2019 - we concluded the Inventory list as Mr. Rana kept adding items to it.

COMPLAINANT'S RESPONSE: Again, the Complainant would like to point out that TROY's Bill of Lading had already been issued on February 27, 2019. TROY's Bill of Lading number: 1239458, is dated "2/27/2019" and clearly states "72 PIECES OF USED HOUSEHOLD GOODS AND PERSONAL EFFECT" with a gross weight of "1360.78 KG." *See Complainant's Exhibit 6.* Clearly

this demonstrates that the Bill of Lading had been issued with the original itemized list that the Complainant submitted back in February 2019. This is the original Bill of Lading that was used for the passage and for customs clearance. The Respondent at this time was arbitrarily withholding the BOL and asking the Complainant to resubmit the itemized list in an attempt to extort more money. Still the Complainant complied and resubmitted the itemized list at least twice. The Respondent appears to be making an issue out of this now in order to deflect the attention from the actual issue at hand, which is Respondent's failure to pay Ocean charges. The Complainant had requested in discovery for the Respondent to provide all correspondence with TROY; the Respondent failed to produce these documents and provide answers because she is trying to conceal material facts that would have impacted her interests negatively in this litigation. Those documents would have further established that the delay was caused by Respondent's failure to pay Ocean and that the Bill of Lading did not cause any delays. *See Complainant's Exhibit 8. This fact is also supported by Respondent's failure to respond to Complainant's discovery: Request for the Production of Documents 1 and 2.*

RESPONDENT'S PROPOSED FINDING OF FACT: 03/28/2019 - Mr. Rana advised that he hired an agent to assist with the custom clearance and the process in Pakistan, and Asked to change the Bill of lading again to reflect that. -an agent should have been involved much earlier in the process as Custom clearance in Pakistan is no joke.

COMPLAINANT'S RESPONSE: The Respondent is being dishonest and making a baseless assertion here. The Complainant had hired an agent timely and there is no evidence that any delay was caused by the agent or lack thereof. The Complainant did not ask to change the BOL, nor was the original BOL that was issued by TROY on 2/27/2019 changed. *See Complainant's Exhibit 6.* The Respondent appears to be making an issue out of this now in order to deflect the attention from the actual issue at hand, which is Respondent's failure to pay Ocean charges. The Complainant would like to point out that the Respondent is neither an expert on Pakistan, nor has the Respondent ever been to Pakistan to make baseless assertions about the Customs process in Pakistan. The Complainant was present in Pakistan and oversaw the entire process in person along with his agent. The Complainant has submitted a sworn statement under penalty of perjury to that effect. *See Complainant's Exhibit 41.*

RESPONDENT'S PROPOSED FINDING OF FACT: 03/31/2019 - Mr. Rana started his verbal abuse and threatening because he failed to understand that changing a BOL, especially last minute is out of my hands, and take the SSL few days to process. (Please see respondent exhibit 5.)

COMPLAINANT'S RESPONSE: Again the Respondent is being dishonest here. Firstly, the Respondent in bad faith was ignoring Complainant's repeated requests. The Complainant only gave a fair warning about taking legal action because the Respondent was ignoring the

Complainant's emails and not providing him with the BOL that had already been issued back in February 2019. By any definition, giving a fair warning of legal consequences does not constitute "verbal abuse." Secondly, the Complainant had not requested any changes to the BOL at this point, he was only asking for the BOL that had been issued by TROY back in February 2019. *See Complainant's Exhibit 6.* The Respondent appears to be making an issue out of this now in order to deflect the attention from the actual issue at hand, which is Respondent's failure to pay Ocean charges. The Complainant had requested in discovery for the Respondent to provide all correspondence with TROY; the Respondent failed to produce these documents and provide answers because she is trying to conceal material facts that would have negatively impacted her interests in this litigation. Those documents would have further established that the delay was caused by Respondent's failure to pay Ocean and that the Bill of Lading did not cause any delays. *See Complainant's Exhibit 8. This fact is also supported by Respondent's failure to respond to Complainant's discovery: Request for the Production of Documents 1 and 2.*

RESPONDENT'S PROPOSED FINDING OF FACT: 04/04/2019 Mr. Rana requested additional changes to the Bill of lading, and I have submitted the changes and sent him a house BOL as well to expedite the process. (please see respondent Exhibit 6 .)

COMPLAINANT'S RESPONSE: Out of an abundance of caution the Complainant's agent had advised the Complainant to get another BOL that included the Complainant's middle name "Jahangir" as it appeared on Complainant's passport. The Complainant had submitted his passport copy to the Respondent back in February 2019, it was the Respondent's responsibility to have issued a BOL with the Complainant's name, including middle name, as it appeared on Complainant's passport. This request was based on Complainant's agent's advice only out of an abundance of caution. Ultimately, the original BOL (*see Complainant's exhibit 6*) issued by TROY on February 27, 2019, was used to clear Customs. So the House BOL is irrelevant as it was never used. There is absolutely no evidence that this caused any delays. TROY's agent CP World issued a letter to the Complainant explaining that the only delay in the process was caused by Respondent's failure to pay Ocean charges. *See Complainant's Exhibit 8.* Irrespective of the BOL; TROY's agent CP World had placed a hold on Complainant's cargo and was not releasing it for Customs inspection because of Respondent's failure to pay ocean. At no point did the BOL ever cause any delays, the delay was all caused by Respondent's failure to pay Ocean. The Complainant had requested in discovery for the Respondent to provide all correspondence with TROY; the Respondent failed to produce these documents and provide answers because she is trying to conceal material facts that would have impacted her interests negatively in this litigation. Those documents would have further established that the delay was caused by Respondent's failure to pay Ocean and that the Bill of Lading did not cause any delays. *See Complainant's Exhibit 8. This fact is also supported by Respondent's failure to respond to Complainant's discovery: Request for the Production of Documents 1 and 2.*

RESPONDENT'S PROPOSED FINDING OF FACT: 04/05/2019 - I was informed that the freight was on hold, and It seems as the payment that was submitted was applied towards an old shipment that was still pending.

COMPLAINANT'S RESPONSE: From April 5th through April 9, 2019, the Respondent over email claimed that she paid the ocean to a "third party" who in turn was going to pay TROY; and that for some unknown reason the "third party" never paid TROY, but issued a refund to the Respondent. *See Complainant's exhibits 23, 24, 28 and 33.* At the time, the Respondent never mentioned that her "payment was applied towards an old shipment," the first time the Respondent mentioned this was in her formal response to the Complaint dated 8/13/2019. This version clearly contradicts Respondent's own emails where she claims that a third party was used for payment, and that third party failed to pay TROY and issued a refund to the Respondent. This means that the Respondent made deceitful and false statements about paying a third party to the Complainant. Moreover, in response to Complainant's discovery, the Respondent repeatedly admitted to not paying Ocean. *See Respondent's Response to Complainant's discovery.* The Complainant in his discovery had requested all correspondence between the Respondent and TROY Container Lines regarding Complainant's Ocean charges in order to get to the bottom what actually transpired. It is to be noted that the Respondent refused to answer this discovery request or produce relevant documents in an attempt to conceal material facts that would have gone against her interests in this litigation. Evidently this discovery must exist where the Respondent convinces TROY to transport cargo without prepayment and in bad faith encourages TROY to collect Ocean payment from the Complainant in Karachi. *See Complainant's Exhibit 8. The facts above are also supported by Respondent's failure to respond to Complainant's discovery: Request for the Production of Documents 1 through 9 and interrogatories 2 through 11.*

RESPONDENT'S PROPOSED FINDING OF FACT: 04/05-09/2019 -I had advised the customer, that he should pay directly at destination , and he has two options, wait few days to be compensated by the company, or file a claim against the company bond (I have provided him with the claim form , the FMC details etc to make sure he understand his options) . I wanted him to know we take full responsibility.

COMPLAINANT'S RESPONSE: The Respondent is being dishonest here, because the fact remains that the Respondent never provided the Complainant with a claim form. Respondent's assertion that she provided the Complainant with the claim form is simply not true. On April 5, 2019, the Respondent only told the Complainant "you can file a claim against the company bond," without giving any instructions on how to file. *See Complainant's Exhibit 23.* The Respondent only provided the Complainant with an email zdelacruz@fmc.gov on April 8, 2019.

See Respondent's Exhibit 3. Never did the Respondent provide the Complainant with a claim form or instructions on how to file a claim.

II. Complainant's Reply Brief

The Respondent in her brief asserts that the delay may have been caused by the BOL and that the Customs clearance could have taken place even with a hold placed on Complainant's cargo. This is a baseless assertion because obviously the Respondent appears to be ignorant about the Customs process in Pakistan. This is baseless and not factual. The Respondent is not an expert on Pakistan and has never been to Pakistan, nor has she ever dealt with Pakistani Customs directly. The BOL clearly indicates CP World as the point of contact for delivery. *See Complainant's Exhibit 6.* Without a 'No Objection Certificate' from CP World and MAERSK, the Customs Office refused to inspect or do anything with Complainant's cargo. Nor was the Complainant's agent able to present the cargo for Customs inspections.

The Complainant personally went to the Customs Office to explain and even tried to file a complaint against CP World because initially the Complainant thought that CP World was extorting money from the Complainant because he was a US Citizen. The Customs Officer in Pakistan requested proof that the Complainant's forwarding agent (the Respondent) paid TROY. That is one reason the Complainant repeatedly begged the Respondent to give proof of payment, so the Complainant can pursue a complaint against CP World and get the cargo released with the assistance of law enforcement at Port Qasim. The Customs Officer ultimately informed the Complainant that without proof of payment, the Customs Authority in Pakistan cannot do anything, nor could they inspect Complainant's cargo until the payment was made to CP World and a 'No Objection Certificate' was issued.

Only after the hold by CP World was released, only then the Complainant's agent was able to present the cargo for Customs inspection and not before. The Complainant has explained this process in a sworn statement made under penalty of perjury. *See Complainant's Exhibit 41.* The Respondent is not an expert on Pakistan Customs regulations and is making this baseless / groundless argument only to deflect attention from the real issue which is Respondent's failure to pay ocean.

The Complainant also makes a baseless and groundless assertion that the Customs process in Pakistan takes about 17 to 20 days. This was simply not true for Complainant's cargo which was inside a 20 foot container with a weight of 1361 KG and contained only non-commercial used personal items. The actual inspection only took a few hours, the

paperwork and processing took about 3 to 4 days. *See Complainant's Exhibit 41.* The Respondent was not present there, but the Complainant was.

The Complainant had requested in discovery for the Respondent to provide all correspondence with TROY; the Respondent failed to produce these documents and provide answers because she is trying to conceal material facts that could negatively impact her interests in this litigation. Those documents would have further shown that the delay(s) were caused by Respondent's failure to pay Ocean and not because of BOL or any other reason. *See Complainant's Exhibit 8.* Even after being compelled to provide those documents by the honorable judge the Respondent still did not provide those documents concealing and withholding material evidence that would have shown that the Respondent never had any intention of paying ocean and was encouraging TROY to collect the ocean from the Complainant in Karachi. This discovery would have also shown that the Respondent in bad faith was making false and deceitful email statements to the Complainant. There is compelling reason to believe that this discovery exists. *This fact is supported by Respondent's failure to respond to Complainant's discovery: Request for the Production of Documents 1 through 9 and interrogatories 2 through 11.*

Regarding Complainant's proposed fact number 6, the Respondent stated in her own email and in her own words that "the booking was done under another company license, because I knew we may get to the point we have to close." *See Complainant's exhibit 27.* Here the Complainant is clearly admitting in her own words that she reasonably suspected that her company would close at the time the booking was done in February 2019. The Respondent concealed this information from the Complainant at the time of the booking. This gives further gives further reason to believe that at the time of the booking, the Respondent never had any intention to pay Ocean and that discovery exists where the Respondent convinces TROY to ship without payment and to collect payment from the Complainant in Karachi. *This fact is also supported by Respondent's failure to respond to Complainant's discovery: Request for the Production of Documents 1 and 2.*

The Complainant would also like to point out that a cursory search of the internet appears to indicate that the respondent has a pattern and practice of engaging in deceit with consumers. *See Complaint for Formal Adjudication, exhibit 25 (attached to the original complaint in May 2019).*

Much of the Respondent's proposed facts and claims are without merit and lack substantive evidence. The Complainant on the other hand has proposed facts based on evidence in the form of Respondent's own email statements, Respondent's failure to respond to discovery, and other material documents present in the record of proceeding.

Respectfully submitted,



Muhammad J.Rana (Complainant)

I hereby certify that, on April 9, 2020, a copy of the foregoing Response was sent to the following by the method indicated below:

Honorable Judge Erin M.Wirth

Electronic Mail:
secretary@fmc.gov
judges@fmc.gov

Michelle Franklin

VIA Electronic Mail:
mfranklin@therightmove4u.com



Muhammad J.Rana (Complainant)